

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julian Phillips	Team: Squad #05	CCRB Case #: 201901316	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 09/29/2018 4:35 AM	Location of Incident: § 87(2)(b) in a police vehicle; 114th Precinct stationhouse		18 Mo. SOL 11/13/2020		Precinct: 114
Date/Time CV Reported Fri, 02/01/2019 3:45 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/12/2019 11:18 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			114 PCT
2. POM Edward Britch	03990	951559	114 PCT
3. POM Brian Hughes	15503	956746	114 PCT
4. POF Cristina Mcdonald	04468	924083	114 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Nicholas Mansfield	00972	927127	114 PCT
2. POM Kyle Simpson	20755	959239	114 PCT
3. POM Erald Zgjana	09472	952369	114 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Edward Britch	Abuse: Police Officer Edward Britch entered § 87(2)(b) in Queens.	A . Exonerated
B . POM Brian Hughes	Abuse: Police Officer Brian Hughes entered § 87(2)(b) in Queens.	B . Exonerated
C . POM Edward Britch	Abuse: Inside § 87(2)(b) in Queens, Police Officer Edward Britch refused to provide his name to § 87(2)(b)	C . Unsubstantiated
D . POM Edward Britch	Abuse: Inside § 87(2)(b) in Queens, Police Officer Edward Britch refused to provide his shield number to § 87(2)(b)	D . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
E . POM Brian Hughes	Abuse: Inside § 87(2)(b) in Queens, Police Officer Brian Hughes refused to provide his name to § 87(2)(b)	E . Unsubstantiated
F . POM Brian Hughes	Abuse: Inside § 87(2)(b) in Queens, Police Officer Brian Hughes refused to provide his shield number to § 87(2)(b)	F . Unsubstantiated
G . POF Cristina Mcdonald	Abuse: In front of § 87(2)(b) in Queens, Police Officer Cristina Mcdonald performed a cavity search of § 87(2)(b)	G . Unsubstantiated
H . POM Edward Britch	Abuse: Inside a police vehicle, Police Officer Edward Britch refused to provide his name to § 87(2)(b)	H . Unsubstantiated
I . POM Edward Britch	Abuse: Inside a police vehicle, Police Officer Edward Britch refused to provide his shield number to § 87(2)(b)	I . Unsubstantiated
J . POM Brian Hughes	Abuse: Inside a police vehicle, Police Officer Brian Hughes refused to provide his name to § 87(2)(b)	J . Unsubstantiated
K . POM Brian Hughes	Abuse: Inside a police vehicle, Police Officer Brian Hughes refused to provide his shield number to § 87(2)(b)	K . Unsubstantiated
L . POM Edward Britch	Abuse: At the 114th Precinct stationhouse, Police Officer Edward Britch refused to provide his name to § 87(2)(b)	L . Unsubstantiated
M . POM Edward Britch	Abuse: At the 114th Precinct stationhouse, Police Officer Edward Britch refused to provide his shield number to § 87(2)(b)	M . Unsubstantiated
N . POM Brian Hughes	Abuse: At the 114th Precinct stationhouse, Police Officer Brian Hughes refused to provide his shield number to § 87(2)(b)	N . Unsubstantiated
O . POM Brian Hughes	Abuse: At the 114th Precinct stationhouse, Police Officer Brian Hughes refused to provide his name to § 87(2)(b)	O . Unsubstantiated
P . An officer	Abuse: At the 114th Precinct stationhouse, an officer did not obtain medical treatment for an individual.	P . Victim Unidentified

Case Summary

On February 1, 2019, § 87(2)(b) filed this complaint with IAB via telephone, generating original log number 2019-5110. On February 12, 2019, IAB forwarded this complaint to the CCRB.

On September 29, 2019, at approximately 4:35 a.m., § 87(2)(b) was inside § 87(2)(b) in Queens. Police Officers Edward Britch and Brian Hughes, both of the 114th Precinct, entered the apartment (**Allegations A and B: Abuse of Authority, exonerated**). Inside the apartment, PO Britch and PO Hughes allegedly failed to provide their names and shield numbers to § 87(2)(b) upon her request (**Allegations C through F: Abuse of Authority, unsubstantiated**). The officers escorted § 87(2)(b) out to the street, where Police Officer Christina McDonald, also of the 114th Precinct, allegedly ordered § 87(2)(b) to open her mouth and shined a flashlight inside (**Allegation G: Abuse of Authority, unsubstantiated**). PO Britch and PO Hughes transported § 87(2)(b) to the 114th Precinct stationhouse, and inside the vehicle allegedly again failed to provide their names and shield numbers to § 87(2)(b) upon her request (**Allegations H through K: Abuse of Authority, unsubstantiated**). PO Britch and PO Hughes lodged § 87(2)(b) inside a holding cell, where they allegedly again failed to provide their names and shield numbers to § 87(2)(b) upon her request (**Allegations L through O: Abuse of Authority, unsubstantiated**). Inside the holding cell, an officer allegedly failed to comply with an unidentified prisoner's request for medical treatment (**Allegation P: Abuse of Authority, victim unidentified**).

§ 87(2)(b) was arrested and charged with § 87(2)(b).

There was no video footage of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Edward Britch entered § 87(2)(b) in Queens.

Allegation (B) Abuse of Authority: Police Officer Brian Hughes entered § 87(2)(b) in Queens.

§ 87(2)(b) testified (**Board Review 01**) that, prior to the incident, she had been engaged in an ongoing legal dispute over her occupancy of § 87(2)(b) and § 87(2)(b) had previously shared the unit with the leaseholder, § 87(2)(b) and had continued to reside there alone after she and § 87(2)(b) obtained orders of protection prohibiting contact with each other. On the evening of the incident, § 87(2)(b) returned to the apartment to find that the locks had been changed. § 87(2)(b) called 911 and an NYPD unit responded to the scene and informed § 87(2)(b) that they could not grant her access to the apartment. § 87(2)(b) reported that this unit included three officers, but upon a review of police documentation and other statements, the investigation determined that this unit consisted solely of PO Britch and PO Hughes. After the officers left the scene, § 87(2)(b) gained entry to the apartment by climbing through a window. Several hours later, PO Britch and PO Hughes abruptly opened the door and entered the apartment.

§ 87(2)(b) testified (**Board Review 02**) that, upon receiving written notification from Queens Housing Court that he had been granted sole possession of the apartment and had been authorized to change the locks, he notified the 114th Precinct of the situation. § 87(2)(b) showed his written notification from Queens Housing Court to officers, and he changed the locks in the presence of officers before leaving the scene. Several hours later, § 87(2)(b) received a call from the building owner, § 87(2)(b) who stated that § 87(2)(b) had regained entry to the apartment. PO Britch and PO Hughes responded to § 87(2)(b) with § 87(2)(b) § 87(2)(b) § 87(2)(b) showed them the paperwork granting him possession of the apartment. The officers went to the door of the apartment while § 87(2)(b) remained within earshot downstairs. § 87(2)(b) § 87(2)(b) heard PO Britch and PO Hughes speak to § 87(2)(b) at the apartment door for several minutes

before they entered the apartment. Before the officers entered, § 87(2)(b) § 87(2)(b) heard them showing the paperwork to § 87(2)(b) explaining to her that she should not be residing in the apartment, and ordering her to leave the premises.

§ 87(2)(b) reported (**Board Review 03**) that he gave § 87(2)(b) § 87(2)(b) PO Britch, and PO Hughes access to § 87(2)(b) and knew the officers to have entered § 87(2)(b) but he did not know how the officers gained access to the apartment.

PO Britch (**Board Review 04**) and PO Hughes (**Board Review 05**) retained very little memory of this incident. It should be noted that the officers were not interviewed until nearly a year after the date of the incident. Both officers recalled responding to § 87(2)(b) with § 87(2)(b) § 87(2)(b) and PO Hughes recalled § 87(2)(b) § 87(2)(b) showing the officers some form of paperwork. PO Britch recalled being inside § 87(2)(b) PO Britch recalled being inside the apartment, but he could not recall how he gained entry. PO Hughes did not recall ever being inside the apartment.

The investigation retrieved a copy of an order from the § 87(2)(b) of Queens Housing Court, dated § 87(2)(b) (**Board Review 06**). The order awarded § 87(2)(b) § 87(2)(b) “a final judgement of possession for § 87(2)(b) § 87(2)(b) and further authorized § 87(2)(b) § 87(2)(b) to “change the locks” and to “seek the assistance of the police to regain entry.” The investigation also retrieved a copy of an order of protection dated § 87(2)(b), (**Board Review 07**) enjoining § 87(2)(b) to stay away from § 87(2)(b) § 87(2)(b) s residence. The order of protection expired on § 87(2)(b)

The 911 Event associated with this incident (**Board Review 08**) and associated radio communications (**Board Review 09**) confirm that PO Britch and PO Hughes accompanied § 87(2)(b) § 87(2)(b) to § 87(2)(b) at the time of the incident.

§ 87(2)(g)

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Courts have held, as in People v. Garrett, 258 A.D.2d 530 (2nd Dept., 1999), that a tenant who has been evicted from premises does not retain a reasonable expectation of privacy therein (**Board Review 10**). In Garrett, the court held the former tenant of a unit to be evicted when the leaseholder of the unit changed the locks. In People v. McCullum, 156 A.D.3d 8 (2nd Dept., 2018), the court further held that the occupant of a unit who had been issued a warrant of eviction could not deny officers’ entry to the unit (**Board Review 11**). In McCullum, the landlord of the unit showed the officers proof of legal possession and consented to the officers’ entry prior to the officers’ entering the unit despite the occupant’s objection.

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Allegation (C) Abuse of Authority: Inside § 87(2)(b) § 87(2)(b) in Queens, Police Officer Edward Britch refused to provide his name to § 87(2)(b) § 87(2)(b)
Allegation (D) Abuse of Authority: Inside § 87(2)(b) § 87(2)(b) in Queens, Police Officer Edward Britch refused to provide his shield number to § 87(2)(b) § 87(2)(b)
Allegation (E) Abuse of Authority: Inside § 87(2)(b) § 87(2)(b) in Queens, Police Officer Brian Hughes refused to provide his name to § 87(2)(b) § 87(2)(b)

Allegation (F) Abuse of Authority: Inside § 87(2)(b) in Queens, Police Officer Brian Hughes refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) testified that, after PO Britch and PO Hughes entered the apartment, the officers handcuffed her. § 87(2)(b) informed the officers that she wished to file a lawsuit, and asked them for their names and shield numbers approximately ten times. No officer provided his name or shield number to § 87(2)(b).

§ 87(2)(b) testified that he was within earshot of PO Britch, PO Hughes, and § 87(2)(b) while they were speaking in the apartment. § 87(2)(b) stated that he heard § 87(2)(b) ask for an officer's name and shield number a single time and heard an officer provide a name and shield number in response.

§ 87(2)(b) reported that he did not hear any interaction between officers and § 87(2)(b).

Both PO Britch and PO Hughes testified that they did not recall their interaction with § 87(2)(b). PO Britch denied that he failed to provide his name and shield number to § 87(2)(b) upon her request. PO Hughes testified that he did not recall this taking place, but that he generally provides his name and shield number upon request.

§ 87(2)(g) [REDACTED] It is therefore recommended that **Allegations C through F** be closed as **unsubstantiated**.

Allegation (G) Abuse of Authority: In front of § 87(2)(b) in Queens, Police Officer Cristina McDonald performed a cavity search of § 87(2)(b)

§ 87(2)(b) testified that, approximately ten minutes after she was first handcuffed, officers escorted her out of the building. In front of § 87(2)(b) PO McDonald frisked and searched § 87(2)(b). During this process, PO McDonald asked § 87(2)(b) if she was carrying drugs, ordered § 87(2)(b) to "say ah," and shined a flashlight inside § 87(2)(b)'s mouth.

§ 87(2)(b) testified that, before officers escorted § 87(2)(b) outside, officers ordered him to wait out of § 87(2)(b)'s sight. § 87(2)(b) denied witnessing any search of § 87(2)(b).

§ 87(2)(b) reported that he did not witness any interaction between officers and § 87(2)(b).

PO McDonald testified (**Board Review 12**) that all she could recall of this incident was standing in front of § 87(2)(b) discussing the incident with other officers. PO McDonald did not recall conducting a search of § 87(2)(b) and she did not recall ordering § 87(2)(b) to open her mouth and shining a flashlight inside.

PO Britch and PO Hughes did not recall witnessing any search of § 87(2)(b) and both officers specifically denied witnessing PO McDonald look inside § 87(2)(b)'s mouth.

§ 87(2)(g) [REDACTED] It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

Allegation (H) Abuse of Authority: Inside a police vehicle, Police Officer Edward Britch refused to provide his name to § 87(2)(b)

Allegation (I) Abuse of Authority: Inside a police vehicle, Police Officer Edward Britch

refused to provide his shield number to § 87(2)(b)

Allegation (J) Abuse of Authority: Inside a police vehicle, Police Officer Brian Hughes

refused to provide his name to § 87(2)(b)

Allegation (K) Abuse of Authority: Inside a police vehicle, Police Officer Brian Hughes

refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) testified that, while PO Britch and PO Hughes were driving her to the 114th Precinct stationhouse, she again asked the officers for their names and shield numbers, but the officers did not reply.

§ 87(2)(b) testified that, while PO Britch and PO Hughes were transporting § 87(2)(b) to the 114th Precinct stationhouse, he was inside a different police vehicle. § 87(2)(b) overheard on officers' radios that § 87(2)(b) was screaming at PO Britch and PO Hughes. § 87(2)(b) did not hear § 87(2)(b) ask the officers for their names and shield numbers over the radio.

The dispatcher recording associated with this incident (**Board Review 09**) does not capture any audio of § 87(2)(b) interacting with officers inside the vehicle.

PO Britch and PO Hughes both testified that they did not recall transporting § 87(2)(b) to the 114th Precinct stationhouse. PO Britch denied that he failed to provide his name and shield number to § 87(2)(b) upon her request. PO Hughes testified that he did not recall this taking place, but that he generally provides his name and shield number upon request.

§ 87(2)(g)

It is therefore recommended that **Allegations H through K** be closed as **unsubstantiated**.

Allegation (L) Abuse of Authority: At the 114th Precinct stationhouse, Police Officer Edward Britch refused to provide his name to § 87(2)(b)

Allegation (M) Abuse of Authority: At the 114th Precinct stationhouse, Police Officer Edward Britch refused to provide his shield number to § 87(2)(b)

Allegation (N) Abuse of Authority: At the 114th Precinct stationhouse, Police Officer Brian Hughes refused to provide his shield number to § 87(2)(b)

Allegation (O) Abuse of Authority: At the 114th Precinct stationhouse, Police Officer Brian Hughes refused to provide his name to § 87(2)(b)

§ 87(2)(b) testified that, as PO Britch and PO Hughes were lodging her in a holding cell, she again asked the officers for their names and shield numbers, and the officers again failed to respond.

§ 87(2)(b) testified that, while § 87(2)(b) was in the holding cell, he was sitting in the stationhouse waiting room, within full earshot of § 87(2)(b). § 87(2)(b) testified that he heard § 87(2)(b) yelling at the officers, but did not hear her ask any officer for his name or shield number.

PO Britch and PO Hughes testified that they did not recall lodging § 87(2)(b) in the holding cell. PO Britch denied that he failed to provide his name and shield number to § 87(2)(b) upon her request. PO Hughes testified that he did not recall this taking place, but that he generally provides his name and shield number upon request.

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations L through O** be closed as **unsubstantiated**.

Allegation (P) Abuse of Authority: At the 114th Precinct stationhouse, an officer did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) testified that, while she was in the holding cell, she overheard a male prisoner yelling for approximately two hours that he wished to go to the hospital, but that officers did not comply with this request. § 87(2)(b) could not identify the male prisoner. She described him as a 19-year-old black man with a light complexion and an Afro hairstyle.

The NYPD refused to furnish the CCRB with unredacted copies of the 114th Precinct command log (**Board Review 13**) and prisoner holding pen roster (**Board Review 14**) for the time of the incident. The investigation reviewed arrest records from the 114th Precinct and multiple officers' memo books to identify six individuals who may have been inside the holding cells with § 87(2)(b). The investigation used arrest and summons paperwork and database searches to locate potential contact information for these individuals, and the investigation made repeated contact attempts to potential addresses and telephone numbers. Ultimately, the investigation was only able to make contact with two of these individuals, one of whom denied having been in the 114th Precinct stationhouse on the date of incident (**Board Review 15**) and the second of whom was uncooperative with the investigation (**Board Review 16**).

§ 87(2)(g) Therefore, it is recommended that **Allegation P** be closed as **victim unidentified**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one CCRB complaint and has been named a victim in two allegations (**Board Review 17**).
 - § 87(2)(b)
- PO Britch has been a member of service for seven years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- PO Hughes has been a member of service for five years and this is the first CCRB complaint to which he has been a subject.
- PO McDonald has been a member of service for 20 years and has been a subject in one CCRB complaint and two allegations, neither of which was substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On December 15, 2019, a Freedom of Information Law request for Notice of Claim was submitted to the New York City Office of the Comptroller. Any responsive Notice of Claim will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date